To file a complaint about a tax return preparer:

If your tax return preparer does not follow these requirements, you may file a complaint with the Office of Professional Responsibility by:

- visiting our website at *www.tax.ny.gov* (search: complaint)
- calling 518-457-5181

You can also report tax evasion and fraud online or by calling 518-457-0578. The information is kept confidential. The Tax Department takes this type of illegal activity seriously, promptly reviews each complaint, and takes corrective action when appropriate.



Office of Professional Responsibility

We're committed to holding tax return preparers to the highest standards of quality service. We work closely with professional societies, consumer advocacy groups, and law enforcement to ensure all tax preparers perform their duties in an ethical and legal manner.

New York is one of only seven states to regulate the tax preparer industry.

Initiatives:

- require all non-exempt tax return preparers to register with the New York State Tax Department
- help consumers understand their rights when hiring a tax return preparer
- identify and discipline tax return preparers who fail to meet regulatory standards

NEW YORK STATE | Department of Taxation and Finance

www.tax.ny.gov

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NEW YORK STATE | Department of Taxation and Finance

Consumer Bill of Rights

Regarding Tax Preparers





Know your rights before you hire a tax return preparer

Most tax return preparers act within the law and treat their clients fairly, but there are some who do not.

This brochure contains important information about how to protect yourself when you hire a tax return preparer.

For more information, call **518-457-5181.**

Scan this QR code for more information, including additional rights you have as a New York State taxpayer. Information is also available in Español, 中文版 Русский, বাঙালি, שידיי, Kreyòl ayisyen, 한국어, Italiano, عربى, and Polski. (search: *language*).

Tax return preparers must:

- post their New York State Tax Preparer Registration Certificate and price list;
- tell you up front whether they will represent you if your return is audited later;
- ask you about your income, expenses, family, and any other information or documents needed to accurately complete your return;
- allow you to review your completed return (including your bank account information) and ask questions before you sign it;
- give you a written statement of any interest and fees you will be charged if you choose a refund anticipation loan (refund advance) or a refund anticipation check (refund transfer) instead of having your refund deposited directly into your bank account;
- sign your tax return and enter the preparer tax identification number (PTIN) and New York tax preparer identification number (NYTPRIN), if applicable;
- e-File your tax return;
- give you a year-round address and phone number you can use if you have questions or concerns about your return; and
- give you a copy of your filed return.

A tax return preparer should never ask you to sign:

- a blank return;
- an incomplete return;
- a return with false information on it; or
- a return with information that you don't understand.

A tax return preparer should never charge a separate fee to e-file your New York return, and should never guarantee that:

- you'll receive a tax refund; or
- you won't be audited by the IRS or the New York State Tax Department.

